

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS-----X
DANIELLE EDWARDS :

Plaintiffs, :

SUMMONS

-against- :

Index No.:

Date Purchased:

THE CITY OF NEW YORK,
POLICE OFFICER JOHN DOE #1,
POLICE OFFICER JOHN DOE #2, and
POLICE OFFICER JANE DOE

Defendant. :

The basis of venue is:
Defendants' Place of Business and
the Plaintiffs' residence
Plaintiff designates
KINGS COUNTY as place of trial.

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TO THE ABOVE-MENTIONED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's Attorneys within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this Summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: 05/04/2016

Brooklyn, NY

By: /s/Alexis G. Padilla
Alexis G. Padilla, Esq. [AP8285]
Of Counsel to Norman Keith White and
Kenneth J. Montgomery, PLLC
Attorneys for Plaintiff
Danielle Edwards
198A Rogers Avenue
Brooklyn, NY 11225

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
DANIELLE EDWARDS

Plaintiff,

Index No.:

-against-

COMPLAINT

THE CITY OF NEW YORK,
POLICE OFFICER JOHN DOE #1,
POLICE OFFICER JOHN DOE #2, *and*
POLICE OFFICER JANE DOE

JURY TRIAL DEMANDED

Defendants,

-----X

Plaintiff, DANIELLE EDWARDS, by her attorneys Kenneth J. Montgomery, Norman Keith White and Alexis G. Padilla, complaining of the Defendants POLICE OFFICER JOHN DOE # 1, POLICE OFFICER JOHN DOE #2, POLICE OFFICER JANE DOE and THE CITY OF NEW YORK, alleges the following:

PRELIMINARY STATEMENT

1. This is a civil rights action in which the plaintiff, DANIELLE EDWARDS, seeks relief for the Defendants' violation of her rights as secured by the Fourth and Fourteenth Amendments to the United States Constitution, the Civil Rights Act of 1871, 42 U.S.C. § 1983, and the Constitution of the State of New York. Plaintiff seeks compensatory and punitive damages, an award of costs, interest and attorney's fees, and such other and further relief as this Court deems just and proper.

JURISDICTION AND VENUE

2. This Court has personal jurisdiction over the Defendants pursuant to Civil Practice Law and Rules ("CPLR") §302(a)(2) because they committed tortuous acts giving

rise to this action against Plaintiff in Brooklyn and because Defendant is a resident of Brooklyn.

3. Venue is proper in this county pursuant to CPLR §503 because Plaintiff is a resident of Kings County.

NOTICE OF CLAIM

4. Plaintiff timely filed a Notice of Claim with the Comptroller of the City of New York, setting forth the facts underlying Plaintiff's claims against Defendant CITY OF NEW YORK.

5. The City assigned a claim number to Plaintiff's claim, and Plaintiff was subjected to an examination pursuant to N.Y. Gen. Mun. L. Sec. 50-h on February 8, 2016.

6. To date, no answer has been received by Plaintiff and no compensation has been offered by Defendant CITY OF NEW YORK in response to this claim.

7. This action has been commenced within one year and ninety days of the date of occurrence of the events giving rise to this Complaint.

PARTIES

8. Plaintiff is a United States citizen of full age residing in Kings County, New York. Plaintiff is an employee of the New York City Department of Education.

9. Defendant CITY OF NEW YORK is and was at all times relevant herein a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant CITY OF NEW YORK assumes the risks incidental to the maintenance of a police force and the employment of police officers. Defendant CITY OF NEW YORK was at all times relevant herein the public employer of the Defendant Police Officers.

10. Defendant POLICE OFFICER JOHN DOE #1 was at all times relevant herein a duly appointed and acting officer, servant, employee and agent of the New York Police Department, a municipal agency of the City of New York. At all times relevant herein, Defendant POLICE OFFICER JOHN DOE #1 acted under color of the laws, statutes, ordinances, regulations, policies, customs and/or usages of the State of New York and the New York Police Department, in the course and scope of his duties and functions as an officer, agent, servant and employee of the City of New York, was acting for, and on behalf of, and with the power and authority vested in him by the City of New York and the New York Police Department, and was otherwise performing and engaging in conduct incidental to the performance of his lawful functions in the course of his duty. He is sued individually and in his official capacity.

11. Defendant POLICE OFFICER JOHN DOE #2 was at all times relevant herein a duly appointed and acting officer, servant, employee and agent of the New York Police Department, a municipal agency of the City of New York. At all times relevant herein, Defendant POLICE OFFICER JOHN DOE #2 acted under color of the laws, statutes, ordinances, regulations, policies, customs and/or usages of the State of New York and the New York Police Department, in the course and scope of his duties and functions as an officer, agent, servant and employee of the City of New York, was acting for, and on behalf of, and with the power and authority vested in him by the City of New York and the New York Police Department, and was otherwise performing and engaging in conduct incidental to the performance of his lawful functions in the course of his duty. He is sued individually and in his official capacity.

12. Defendant POLICE OFFICER JANE DOE was at all times relevant herein a duly appointed and acting officer, servant, employee and agent of the New York Police Department, a municipal agency of the City of New York. At all times relevant herein, Defendant POLICE OFFICER JANE DOE acted under color of the laws, statutes, ordinances, regulations, policies, customs and/or usages of the State of New York and the New York Police Department, in the course and scope of her duties and functions as an officer, agent, servant and employee of the City of New York, was acting for, and on behalf of, and with the power and authority vested in her by the City of New York and the New York Police Department, and was otherwise performing and engaging in conduct incidental to the performance of her lawful functions in the course of her duty. She is sued individually and in her official capacity.

STATEMENT OF FACTS

13. On October 28, 2015 at approximately 3:00 a.m. Plaintiff was seated in the backseat of a friend's car in the vicinity of Rogers and Tilden avenues in Brooklyn when three police officers in plain clothes approached the vehicle.

14. All three officers shone their flashlights into the car and Defendant POLICE OFFICER JOHN DOE #1 instructed the individual in the driver's seat to roll down the windows.

15. Plaintiff, who was seated in the backseat asked, "Is there a problem officer?"

16. Defendant POLICE OFFICER JOHN DOE #1 responded in a hostile tone and asked Plaintiff, "Is that how you speak to a police officer?"

17. Defendant POLICE OFFICER JANE DOE then instructed all four of the individuals, including Plaintiff, to get out of the car.

18. Defendant POLICE OFFICER JANE DOE then approached Plaintiff and said, "I want to search you."

19. Plaintiff asked why and Defendant POLICE OFFICER JANE DOE said, “Your behavior is suspicious.”

20. Plaintiff stated that she would not consent to a search because she hadn’t done anything to warrant being searched.

21. Defendant POLICE OFFICER JANE DOE then frisked Plaintiff and searched her pockets.

22. Simultaneously, Defendant POLICE OFFICER JOHN DOE #2 peppered Plaintiff with questions.

23. Plaintiff refused to answer any questions and demanded to know why she and her friends were being detained.

24. Defendant POLICE OFFICER JOHN DOE #2 told her to shut up.

25. Defendant POLICE OFFICER JANE DOE and Defendant POLICE OFFICER JOHN DOE #1 searched the car.

26. After searching the car, the Defendant’s found a small amount of marijuana.

27. The Defendant Officers then told all four individuals that they were under arrest.

28. At that moment Plaintiff demanded to speak to a commanding officer.

29. Defendant POLICE OFFICER JOHN DOE #1 then grabbed Plaintiff’s right hand and slammed her into the back of the car, bending her arm behind her back.

30. Defendant POLICE OFFICER JOHN DOE #2 then said to Plaintiff “If you want to act like a man we’re going to treat you like a man.”

31. Defendant POLICE OFFICER JOHN DOE #2 then took Plaintiff’s arm and pressed his body into hers as she was bent over the back of the car, thrusting his pelvis into her backside.

32. Plaintiff again demanded to speak to a commanding officer.
33. Defendant POLICE OFFICER JOHN DOE #1 and Defendant POLICE OFFICER JOHN DOE #2 then forced Plaintiff to the ground.
34. Defendant POLICE OFFICER JOHN DOE #1 knelt down on top of Plaintiff and placed her wrists in handcuffs.
35. Defendant POLICE OFFICER JOHN DOE #1 then pulled Plaintiff up from the ground by the chain of the handcuffs, causing extreme pain to Plaintiff's wrists, arms and shoulders.
36. Defendant POLICE OFFICER JOHN DOE #1 then slammed Plaintiff into a police vehicle and bent her over the hood of the car, applying pressure to her wrists and arms.
37. Plaintiff screamed in obvious pain and pleaded with the Defendant POLICE OFFICER JOHN DOE #1 to stop.
38. Defendant POLICE OFFICER JOHN DOE #1 then placed Plaintiff in a police vehicle.
39. Plaintiff was transported to the 67th Precinct of the New York Police Department where she remained for approximately ten hours.
40. From the 67th Precinct Plaintiff was then transported to central booking in Manhattan, where she remained for an additional six hours before she was released without ever having seen a judge or spoken to a lawyer.
41. No charges were ever brought against Plaintiff in relation to this incident.
42. At no time during this course of events did Plaintiff commit any act for which she could be arrested.

43. At no time during this course of events did the Defendant Officers have probable cause to use force against Plaintiff.

44. At no time during this course of events did the Defendant Officers have probable cause to arrest Plaintiff.

45. At no time during this course of events did the Defendant Officers have reasonable suspicion to stop, frisk and search Plaintiff.

46. As a result of the acts of the Defendants POLICE OFFICER JOHN DOE #1 POLICE OFFICER JOHN DOE #2 and POLICE OFFICER JANE DOE Plaintiff suffered the following injuries:

- a. A linear articular sided tear within the anterior supraspinatus tendon in her left shoulder;
- b. A glenoid labral tear in her right shoulder;
- c. A curvilinear intrasubstance tear within the mid to anterior supraspinatus tendon in her right shoulder;
- d. Tracaeubacrominal/ subdeltoid bursitis in her right shoulder;
- e. Diffuse disc bulges at C4-C5 and C5-C6 in her spine; and
- f. Approximately sixteen (16) hours of false imprisonment

AS FOR A FIRST CAUSE OF ACTION

Deprivation of Rights Protected under the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States and 42 U.S.C. § 1983

47. Plaintiff repeats, reiterates and asserts each and every allegation contained in the previous paragraphs with the same force and effect as if fully set forth herein.

48. At all times during the events described above the Defendants lacked probable cause to stop, frisk and search Plaintiff.

49. At all times during the events described above the Defendants lacked probable cause to detain and arrest Plaintiff.

50. All of the aforementioned acts of the Defendants were carried out in concert and with the intention of depriving Plaintiff of her constitutional rights.

51. All of the aforementioned acts of the Defendants were carried out under the color of state law and by the Defendants in their capacities as police officers, with all actual and/or apparent authority afforded thereto.

52. All of the aforementioned acts deprived Plaintiff of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983, including but not limited to the right to be free from unreasonable search and seizure, excessive force, false arrest and deprivation of liberty without due process of law.

SECOND CAUSE OF ACTION

Failure to Intervene under 42 U.S.C. § 1983

53. Plaintiff repeats, reiterates and asserts each and every allegation contained in the previous paragraphs with the same force and effect as if fully set forth herein.

54. The Defendant Police Officers are liable for the above-stated actions of their co-defendants due to their failure to intervene and stop the use of excessive force and illegal detention against Plaintiff when Defendants knew or should have known that Plaintiff's rights were being violated.

55. The Defendant Police Officers each had a duty to intervene to prevent an obvious violation of rights by a fellow officer.

56. The Defendant Police Officers each had a reasonable opportunity to intervene.

57. The Defendant Police Officers each failed to intervene to prevent the violation of Plaintiff's rights.

58. As a direct and proximate result of the Defendant Police Officers' failure to intervene Plaintiff suffered injuries and damages as stated herein.

THIRD CAUSE OF ACTION

Municipal Liability under 42 U.S.C. § 1983 against the City of New York

59. Plaintiff repeats, reiterates and asserts each and every allegation contained in the previous paragraphs with the same force and effect as if fully set forth herein.

60. The CITY OF NEW YORK directly caused the constitutional violations suffered by Plaintiff, and is liable for the damages suffered by Plaintiff as a result of the conduct of the Defendant Police Officers. The conduct of the Defendant Police Officers was a direct consequence of inadequate training and supervision of police officers by Defendant CITY OF NEW YORK and its agent, the New York Police Department.

61. At all times relevant to this complaint Defendant CITY OF NEW YORK through its agent, the New York Police Department, had in effect policies, practices, and customs that allowed for a group of police officers to illegally stop, frisk, search, detain, assault and arrest Plaintiff without probable cause and in flagrant violation of their sworn oath to uphold the Constitution.

62. At all times relevant to this complaint it was the policy and/or custom of the CITY OF NEW YORK to inadequately train, supervise, and discipline its police officers, thereby failing to adequately discourage reckless misadventures of the sort described in this complaint.

63. As a result of the policies and customs of the CITY OF NEW YORK and its agency the New York Police Department, police officers – including the defendants on the day

of the incident in question – believe that their unconstitutional actions will not result in discipline but will in fact be tolerated.

64. The wrongful polices, practices and customs complained of herein, demonstrates a deliberate indifference on the part of policymakers of the CITY OF NEW YORK to the constitutional rights of persons within the city, and were the direct and proximate cause of the violations of Plaintiff's rights alleged herein.

FOURTH CAUSE OF ACTION

Negligence

65. Plaintiff repeats, reiterates and asserts each and every allegation contained in the previous paragraphs with the same force and effect as if fully set forth herein.

66. Defendant Police Officers, while acting as agents and employees for Defendant CITY OF NEW YORK, owed a duty to Plaintiff to perform their police duties with a high level of caution.

67. The failure of the Defendant Police Officers to exercise the requisite level of caution when they decided to use force against Plaintiff and arrest her without probable cause constitutes negligence for which all Defendants are jointly and separately liable.

68. As a result of the acts and conduct of the Defendant Police Officers, Plaintiff suffered the injuries and damages as described herein.

FIFTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

69. Plaintiff repeats, reiterates and asserts each and every allegation contained in the previous paragraphs with the same force and effect as if fully set forth herein.

70. The conduct of the Defendant Police Officers was careless and negligent as to the emotional health of Plaintiff, and caused severe emotional distress to Plaintiff.

71. The conduct of the Defendant Police Officers was the direct and proximate cause of injury and damage to Plaintiff and violated her statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

72. As a result of the acts and conduct of the Defendant Police Officers, Plaintiff was subjected to serious emotional pain and suffering, and was otherwise damaged and injured.

SIXTH CAUSE OF ACTION

Negligent Supervision, Retention and Training

73. Plaintiff hereby restates all of the above stated paragraphs of this complaint, as though fully set forth below.

74. The Defendant CITY OF NEW YORK negligently trained, retained, and supervised the Defendant Police Officers. The acts and conduct of the Defendant Police Officers were the direct and proximate cause of injury and damage to Plaintiff and violated her statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

75. As a result of acts and conduct of the CITY OF NEW YORK, Plaintiff suffered injuries and damages as described herein.

SEVENTH CAUSE OF ACTION

Assault and Battery

76. Plaintiff hereby restates all of the above stated paragraphs of this complaint, as though fully set forth below.

77. By slamming Plaintiff first into cars and then onto the ground, picking her up by the chains of the handcuffs that were applied to her wrists, pulling her arms behind her back and

purposely inflicting pain onto Plaintiff, the Defendants inflicted the torts of assault and battery upon Plaintiff. The acts and conduct of the Defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

78. Defendants' acts constituted an assault upon Plaintiff in that Defendant Police Officers intentionally used excessive force against that put her in immediate apprehension.

79. Defendants' acts constituted a battery upon Plaintiff in that the above described bodily contact was intentional, unauthorized, and grossly offensive in nature.

80. The actions of Defendant Police Officers were intentional, reckless, and unwarranted and without any just cause or provocation and they knew or should have known that their actions were without the consent of Plaintiff.

81. The injuries sustained by Plaintiff were caused wholly and solely by reason of the conduct described and Plaintiff did not contribute thereto.

82. As a result of Defendants' violation of Plaintiff's constitutional rights, Plaintiff suffered the injuries complained of herein.

EIGHTH CAUSE OF ACTION

Intentional Infliction of Emotional Distress

83. The assault upon Plaintiff and her unlawful detention were acts that were extreme, outrageous and utterly intolerable in a civilized community; conduct which exceeded all reasonable bounds of decency.

84. The Defendant Police Officers acts and conduct as described above was intended to and did cause severe emotional distress to Plaintiff.

85. The acts and conduct of the Defendant Police Officers were the direct and proximate cause of injury and damage to Plaintiff and violated her statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

86. As a result of the foregoing, Plaintiff was subjected to serious emotional pain and suffering, and was otherwise damaged and injured.

NINTH CAUSE OF ACTION

Respondeat Superior against Defendant City of New York

87. The acts and conduct of the Defendant Police Officers alleged herein occurred while the defendants were on duty and in uniform, in and during the course and scope of their duties and functions as New York City police officers, and while they were acting as agents, officers, servants and employees of Defendant CITY OF NEW YORK, which as a result, is liable to Plaintiff pursuant to the state common law doctrine of respondeat superior.

WHEREFORE, Plaintiff demands relief jointly and severally against all of the Defendants for compensatory damages in the amount to be determined by a jury; punitive damages in an amount to be determined by a jury; costs, interest and attorney's fees, and such other and further relief as this Court may deem just and proper.

Dated: 05/04/2016
Brooklyn, NY

By: /s/Alexis G. Padilla
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